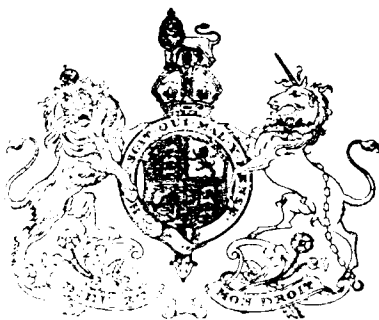




CHAPTER cxcii.

An Act to empower the corporation of Birmingham to work tramways and to construct an additional tramway and to confer further powers on them in regard to streets buildings and sewers and the health local government and improvement of the city and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS Her late Majesty Queen Victoria was pleased by letters patent bearing date the third day of June one thousand eight hundred and ninety-six to declare and ordain that the chief magistrate for the time being of the city of Birmingham should be styled “Lord Mayor of Birmingham” and it is expedient that the corporate name of the municipal corporation of Birmingham should be declared and enacted as by this Act provided :

And whereas divers powers in regard to gas water electric lighting and the improvement and government of the city have been conferred upon the Corporation by the Local Acts and Orders confirmed by Parliament specified in the First Schedule to this Act and such Acts and Orders are referred to in this Act as “the recited Acts” and each of those Acts and Orders is separately referred to as the Act or Order of the year in which it was passed or confirmed :

And whereas the Corporation are the owners of tramways within the city in lease to various companies and bodies and will at an early date be entitled to purchase other tramways within the city and it is expedient that the Corporation should be empowered to work the tramways belonging to them subject to any subsisting lease :

A.D. 1903.

And whereas it is expedient that the Corporation should be empowered to construct the additional tramway in this Act mentioned and should be empowered to work the same and all other tramways for the time being belonging to them by mechanical power as defined by this Act :

And whereas by an indenture of lease dated the sixteenth day of May one thousand eight hundred and ninety-nine John Carter O'Neal and Warner James Halsey demised for a term of nine hundred and ninety-nine years to the Corporation acting as the urban sanitary authority under the Public Health Act 1875 certain lands with the buildings thereon bounded by Congreve Street Great Charles Street Margaret Street and Edmund Street in the city and the Corporation covenanted (among other things) to pull down the said existing buildings and to erect new public buildings on the said lands and it is expedient to empower the Corporation to erect buildings on the said lands for other public purposes in addition to those of the Public Health Act 1875 and also to authorise the Corporation to acquire by agreement the reversionary interest in the said lands expectant on the determination of the said lease :

And whereas the Corporation have adopted the Infectious Disease (Notification) Act 1889 and the Infectious Disease (Prevention) Act 1890 and it is expedient that the sections relating to infectious disease contained in the Act of 1883 should be repealed as provided by this Act :

And whereas it is expedient that better provision should be made with reference to streets buildings and sewers and the regulation of sky signs within the city and that the powers of the Corporation in relation to their gas and electric lighting undertakings and to their markets and cemetery and to the health local government and improvement of the city should be enlarged as by this Act provided :

And whereas it is expedient that the Birmingham Order 1897 (relating to the superannuation of officers and servants of the Corporation) confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897 and any scheme made or to be made thereunder should be extended so as to apply to any stipendiary magistrate and to the clerk and assistant clerks to the justices of the city :

And whereas it is expedient that the Birmingham Tame and Rea District Drainage Board should be empowered to sell and the Corporation to purchase the land belonging or reputed to belong to

the board described in the Fifth Schedule to this Act and that the Corporation should be empowered to erect a destructor and to generate electricity thereon and that the powers in this Act contained should be conferred upon the Corporation and the board : A.D. 1903.

And whereas it is expedient that the Corporation should be empowered to borrow moneys as in this Act mentioned and that the further powers in this Act contained should be conferred upon the Corporation :

And whereas by the Birmingham and Midland Institute Act passed in the year 1854 the mayor of Birmingham for the time being the headmaster for the time being of the Free Grammar School of King Edward the Sixth in Birmingham the warden for the time being of Queen's Collège in Birmingham and the chairman for the time being of the council of the Birmingham Society of Arts together with such other persons as were therein-after declared to be members were incorporated under the name of " The Birmingham and Midland Institute " and it was enacted that the affairs of the institute should be managed by a committee or council of twenty-five governors comprising seven official governors appointed as therein specified five borough governors (that was to say) the mayor of the borough for the time being and four members of the council of the borough to be chosen by the council as therein mentioned and thirteen elected governors :

And whereas since the passing of the said Act of 1854 the Birmingham Society of Arts has been dissolved and the University of Birmingham has been established and it is expedient to alter the constitution of the council of the Birmingham and Midland Institute as by this Act provided :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the following purposes and such estimates are as follows :—

	£
For the construction of the tramway by this Act authorised the reconstruction of the existing tramways in Aston Strcet and Aston Road and for other tramway purposes the sum of - -	50000
For and in connexion with the purchase of land for and the erection of a destructor and electrical generating station the sum of - - -	25000
A 2	3

A.D. 1903.

— And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas by the Act of 1883 it is enacted to the effect (section 288) that no application shall be made to Parliament by the Corporation for further powers or for power to raise further sums of money for the purposes of that Act or for the purposes of any further or other Act until the Corporation shall by notice given in two consecutive weeks in at least two of the newspapers published in the city have called a public meeting of the ratepayers of the city at which meeting the Corporation shall cause to be stated the object of the intended application to Parliament nor unless at such meeting the Corporation shall be authorised by a majority of the ratepayers present at such meeting to make such application Provided that the mayor of the city shall be the chairman of such meeting and the voting at such meeting shall be according to the principle established by the Acts of the fifty-eighth George the Third chapter sixty-nine and fifty-ninth George the Third chapter eighty-five for the regulation of vestries Provided also that if a poll shall be demanded at the said meeting in respect of any question it shall be open to all the ratepayers within the city during a period of three days next following the holding of such meeting to signify their votes in writing in respect of such question and the same shall be decided by the majority of votes so signified and the principle of voting shall be in accordance with the principle to be adopted at the meeting under the provisions in the said section contained :

And whereas under the last recited enactment the Corporation caused to be held a meeting of the ratepayers of the city on the fifth day of November one thousand nine hundred and two and at that meeting a resolution was (after the taking of a poll) duly passed authorising the council to make an application to Parliament for an Act to empower the Corporation to work tramways and to construct an additional tramway and to confer further powers on them in regard to streets buildings and sewers and the health local government and improvement of the city and for other purposes :

And whereas plans and sections showing the lines and levels of the works authorised by this Act were duly deposited with the clerk of the peace for the county of Warwick and are in this Act respectively referred to as the deposited plans and sections :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal A.D. 1903.
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Birmingham Corporation Short title.
Act 1903.

2. This Act is divided into parts as follows :—

Subdivision
of Act into
parts

- Part I.—Preliminary.
- Part II.—Corporate Name.
- Part III.—Tramways.
- Part IV.—Streets Buildings and Sewers.
- Part V.—Sanitary Provisions.
- Part VI.—Infectious Disease.
- Part VII.—Milk Provisions.
- Part VIII.—Ice Cream.
- Part IX.—Common Lodging-houses.
- Part X.—Police.
- Part XI.—Markets.
- Part XII.—Gas.
- Part XIII.—Electricity.
- Part XIV.—Financial Provisions.
- Part X.V.—Miscellaneous Provisions.

3. The following Acts and parts of Acts so far as the same Incorpora-
are applicable for the purposes and are not inconsistent with the tion of Acts.
provisions of this Act are hereby incorporated with this Act :—

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place and run carriages upon such tramways and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section :

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their

A.D. 1903.

benefit and with respect to the yearly receipt and expenditure of the undertakers):

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof).

Interpreta-
tion.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act and by the Public Health Act 1875 meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the lord mayor aldermen and citizens of the city of Birmingham;

“The city” means the city of Birmingham;

“The council” means the council of the city;

“The town clerk” “the treasurer” “the surveyor” and “the inspector of nuisances” mean respectively the town clerk the treasurer the surveyor and the inspector of nuisances of the city;

“Corporation tramways” means the tramway authorised by this Act and other the tramways for the time being belonging to the Corporation;

“Mechanical power” includes steam electric and every other motive power not being animal power;

“Engine” includes motor;

“Closet accommodation” means any receptacle for human excreta and the fittings and apparatus connected therewith;

“Sanitary convenience” has the same meaning as in the Public Health Acts Amendment Act 1890;

“Street” includes any highway and any public bridge and any road lane footway square court alley or passage whether a thoroughfare or not;

“Dairy” means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy;

“Medical officer” means the medical officer of health of the city and includes any person duly authorised to act temporarily as medical officer of health;

- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the city ;
- “The borough fund” “the borough rate” and “the improvement rate” mean respectively the borough fund the borough rate and the improvement rate of the city ;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 and any securities of the Birmingham Tame and Rea District Drainage Board but does not include annuities rentcharges and securities payable to bearer or any securities of the Corporation ;
- “The revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and also rates leviable by or on the order or precept of the Corporation ;
- “The gas annuities” means the annuities granted by the Corporation under the Birmingham (Corporation) Gas Act 1875 and “the water annuities” means the annuities granted by the Corporation under the Birmingham (Corporation) Water Act 1875 ;
- “Daily penalty” means penalty for each day on which the offence is continued after conviction.

A.D. 1903.

—
Incorporation
of sections 8
and 9 of Act
of 1883 as to
committees.

5. Section 8 (Power to appoint committees) and section 9 (Proceedings of committees) of the Act of 1883 are incorporated with this Act and shall extend and apply to the powers and duties conferred upon the Corporation by this Act.

PART II.

CORPORATE NAME.

Style of
Corporation.

6. The name of the municipal corporation of the city is and shall be the lord mayor aldermen and citizens of the city of Birmingham.

Charters to
apply and
alteration of
seal.

7.—(1) All charters public and general and local statutes orders confirmed by Parliament byelaws regulations commissions fiats awards judgments and decrees and all bonds conveyances covenants deeds mortgages securities contracts agreements resolutions orders and notices legal and other proceedings and the grant of arms from the Heralds' College and other instruments and documents relating to the Corporation by their original or any other name shall from and after the passing of this Act be read and have effect as if throughout the same respectively wherever the original or other name of the Corporation or a reference to the Corporation by their original or other name occurs the present name of the lord mayor aldermen and citizens of the city of Birmingham were substituted.

(2) The seal of the Corporation shall be altered in accordance with the provisions of this section.

PART III.

TRAMWAYS.

Power to
make tram-
way.

8. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramway within the city herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places stables carriage-houses engine and boiler houses sheds buildings engines dynamos works and conveniences connected therewith respectively.

The tramway in this section referred to and authorised by this Act is— A.D. 1903.

A double line of tramway 2 furlongs 3·25 chains in length commencing in Aston Street by a junction with an existing tramway near Lancaster Street and proceeding thence in a generally south-westerly direction along Aston Street across Corporation Street to along and terminating in Steelhouse Lane at or near its junction with Bull Street.

9. The tramway authorised by this Act shall be constructed on a gauge of three feet and six inches. Provided that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the Corporation tramways but no carriage or engine used on the Corporation tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade. Gauge of tramway.

10. The tramway by this Act authorised shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed. Time for completion of tramway.

11. The tramway authorised by this Act shall not be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

12. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the Corporation tramways is laid or authorised to be laid the Corporation may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered. Tramway to be kept on level of surface of road.

13. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall before they open or break up any road for the purpose of constructing laying down maintaining and renewing the tramway by this Act authorised lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramway and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down maintenance and renewal of the tramway by this Act authorised Plan of proposed mode of construction.

A.D. 1903. — or any part thereof until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Rails of tramway.

14. The rails of the tramway by this Act authorised shall be such as the Board of Trade may approve.

Penalty for not maintaining rails and roads.

15.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramway by this Act authorised and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and also in the case of a continuing offence to a daily penalty not exceeding five pounds.

(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Power to make additional cross-overs and to double tramway lines.

16.—(1) The Corporation may subject to the provisions of this Act make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those specially authorised as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any engine-house stables or carriage-house or works of the Corporation.

(2) The Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the

Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit. A.D. 1903.
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(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall (not less than one month before commencing the works) give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

17. The Corporation may form junctions between the Corporation tramways and any tramways tramroads or light railways within or without the city which can be worked in connexion therewith but only with the consent of the owners and lessees of such tramways tramroads and light railways respectively and of the local and road authority within whose jurisdiction such junctions would be formed. Junction
with tram-
ways outside
city.

18. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the Corporation tramways is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued. Temporary
tramways
may be made
where neces-
sary.

19. Any paving metalling or material excavated by the Corporation in the construction or reconstruction of any of the Corporation tramways from any road under their jurisdiction or control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit. Application
of road ma-
terials exca-
vated in con-
struction of
works.

20. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):— Motive
power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :

A.D. 1903.

- (2) The Board of Trade shall make regulations (in this Act referred to as “ the Board of Trade regulations ”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the Corporation tramways and for regulating the use of electrical power:
- (3) The Corporation or any person using any mechanical power on the Corporation tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a daily penalty not exceeding five pounds:
- (4) The Board of Trade if they are of opinion—
 - (A) That the Corporation or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or
 - (B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public;
 may by order either direct the Corporation or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

21. The following provisions shall apply to the use of electrical power under this part of this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of

telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus : A.D. 1903.

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any Corporation tramway.

A.D. 1903.

For protec-
tion of Post-
master-
General.

22.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect :—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and work or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways aforesaid by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or

work Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any

A.D. 1903.

manner affected by such act or work or by any use made of such work :

- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression “electric line” has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression “the Corporation” includes their lessces and any person owning working or running carriages on any of the tramways of the Corporation.

Generation of electricity on lands in schedules.

23. The Corporation may erect construct maintain and use dynamos and other electrical apparatus steam engines and works and may generate electrical energy upon the lands described in the Second and Fifth Schedules to this Act :

Provided that if the Corporation shall construct any station for generating electrical energy upon lands other than those described in the Second and Fifth Schedules the Corporation shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on such lands.

Reconstruction of tramways and construction of electric works.

24. The Corporation may reconstruct any tramways for the time being belonging to them within the city and make such alteration thereof as may be necessary or expedient for working the same by mechanical power and for the purpose of working any of the Corporation tramways by mechanical power the Corporation may place construct erect lay down make and maintain in on or under any street such posts electric conductors wires apparatus subways tunnels cables tubes and openings as may be requisite or expedient for the convenient working or user of the

Corporation tramways by animal or mechanical power or for the transmission of electricity to such tramways : A.D. 1903.

Provided always that the provisions for the protection of railway companies contained in the third column of the Sixth Schedule to this Act shall (so far as the altered circumstances will permit) apply to the powers conferred on the Corporation by this section as fully and effectually as if the said provisions had been re-enacted in this Act.

25. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramway. Apparatus used for mechanical power to be deemed part of tramway.

26. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Corporation tramways by mechanical power : Attachment of brackets to buildings.

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :
- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

A.D. 1903.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

Power to
Corporation
to work
tramways.

27. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of any of the Corporation tramways and any tramways on which they may have power to place or run carriages and in respect of the use of such carriages and may provide such tramway plant including in that word buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the working or user of the said tramways by animal or mechanical power but nothing in this section shall empower the Corporation to create or permit a nuisance.

Regulations.

28. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Byelaws.

29.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the Corporation tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

- (A) For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;
- (B) For regulating the emission of smoke or steam from engines used on the tramways ;
- (C) For providing that engines and carriages shall be brought to a stand at the intersection of cross-streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;
- (D) For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engines used for drawing or propelling such carriages ;
- (E) For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

A.D. 1903
—

30. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Amendment
of Tram-
ways Act
1870 as to
byelaws by
local autho-
rity.

31. The Corporation may demand and take for every passenger travelling upon the Corporation tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile.

Fares for
passengers.

32. The Corporation may by resolution appoint the stations and places from which the carriages used on any of the Corporation tramways shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such carriages shall be allowed to remain at any such place and for enforcing order at any such place and no carriage used on any of such tramways shall except for safety and prevention of accidents stop except at such stations starting stopping and other places as aforesaid. Every driver or conductor who wilfully disregards or does not comply with the terms of any such resolution or regulation shall be liable to a penalty not exceeding forty shillings which may be recovered summarily. The term "carriage" in this section shall include any engine used on the tramways and the terms "driver" and "conductor" shall include the driver and conductor or other person having charge of an engine.

Corporation
may appoint
stopping and
starting
places.

33. The Corporation may appoint stages upon any Corporation tramways not less than one mile in distance and the Corporation may notwithstanding anything in this Act contained demand and take for every passenger travelling upon such tramways any fares rates tolls or charges not exceeding one penny per stage and for this purpose the fraction of a stage shall be deemed a stage.

Power to fix
stages.

34. Every passenger travelling upon the Corporation tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage

Passengers'
luggage.

[Ch. excii.] *Birmingham Corporation Act, 1903.* [3 Edw. 7.]

A.D. 1903. thereof all such luggage to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Rates for goods.

35. The Corporation may demand and take in respect of animals goods and parcels conveyed by them on the Corporation tramways including every expense incidental to the conveyance any rates or charges not exceeding those specified in the Third Schedule to this Act subject to the regulations in that behalf therein contained.

Corporation not bound to carry animals and goods.

36. The Corporation shall not be bound unless they think fit to carry on the Corporation tramways any goods animals or other things other than passengers and passengers' luggage under and subject to the foregoing provisions of this Act.

As to fares on Sundays or holidays.

37. The Corporation shall not take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary week days.

Cheap fares for labouring classes.

38.—(1) The Corporation or their lessees at all times after the opening of the Corporation tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance (the Corporation nevertheless not being required to take any fare less than one penny) On Saturdays the Corporation or their lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purpose.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation or their lessees to provide such service as may appear to the Board to be reasonable.

(3) The Corporation or their lessees (as the case may be) shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

39. If at any time after three years from the opening for public traffic of the tramway by this Act authorised or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the Corporation tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city or by the Corporation that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the Corporation tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the Corporation tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided that a copy of this section shall be annexed to every table or list of fares published or exhibited by the Corporation.

A.D. 1903.

Periodical
revision of
rates and
charges.

40. Nothing in this Act shall be deemed to alter or affect the provisions of section 39 (Power to Corporation to elect to construct Tramway No. 3A) of the King's Norton and Northfield Urban District Tramways Act 1901 and that section may be carried into execution as if this Act had not been passed but upon the termination of any lease granted by the Corporation to the council of the said urban district in pursuance of that section the provisions of this Act shall have full force and effect.

For protec-
tion of King's
Norton and
Northfield
Urban Dis-
trict Council.

41.—(1) The Corporation may execute such works as may be necessary to form a junction between the tramway by this Act authorised and the existing tramway in Aston Street and to cross on the level the existing tramways in Corporation Street. And they may notwithstanding the terms of the lease of the existing tramways run carriages over such level crossing.

As to junc-
tion and level
crossing.

(2) All such works relating to the said crossing shall be constructed and maintained by the Corporation in such manner and according to plans sections and specifications to be first submitted to and reasonably approved by the engineer of the lessees of the existing tramways.

A.D. 1903.

(3) All such works relating to the said crossing shall be carried on uninterruptedly when commenced and shall be completed with all reasonable dispatch and shall be constructed and maintained by the Corporation so that the traffic on the existing tramways now in lease to the City of Birmingham Tramways Company Limited shall not except to such extent as may be agreed upon between the Corporation and the said lessees or failing agreement be determined by arbitration be in any way obstructed impeded or interfered with and such maintenance shall be effected under the superintendence and to the reasonable satisfaction of the engineer of the said lessees.

(4) The Corporation shall use the level crossing subject to such regulations as may be agreed upon between the Corporation and the said lessees or failing agreement be determined by the Board of Trade.

(5) No engine or carriage belonging to the Corporation shall be allowed to stand on the level crossing.

(6) The Corporation shall pay to the said lessees full compensation for any injury or damage sustained by them in respect of any works constructed by the Corporation under this section or of the running over the level crossing.

(7) Any question or difference which may arise between the Corporation and the said lessees under the provisions of this section shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

(8) The provisions of this section so far as they relate to the City of Birmingham Tramways Company Limited shall cease to operate on the termination of the existing lease to them.

For protection of City of Birmingham Tramways Company Limited.

42. Nothing in this Act shall authorise the Corporation to interfere with the several tramways in lease to the City of Birmingham Tramways Company Limited during the continuance of the several leases thereof respectively except so far as they may be entitled to so interfere under the terms of such leases respectively or of the section of this Act of which the marginal note is "As to junction and level crossing."

For protection of Birmingham and Midland Tramways.

43. Nothing in this Act shall authorise the Corporation to interfere with the tramways in lease to the Birmingham and Midland Tramways Limited during the continuance of the lease thereof except so far as they may be entitled to so interfere under the terms of such lease.

44.—(1) The Corporation shall from time to time pay to the Great Western Railway Company any additional expense which the Great Western Railway Company may incur in effecting any widening lengthening strengthening reconstructing altering lifting or supporting of any bridge over or under their railway canal or other works or the approaches thereto by reason of the existence of the tramways or any of the works or apparatus connected therewith.

A.D. 1903.
For protection of Great Western Railway Company.

(2) Any additional expense in the maintenance of any such bridge approach roadway or other work occasioned to the Great Western Railway Company by the construction or user of the tramways shall be borne by the Corporation.

45.—(1) The Corporation and the owner or lessee of any tramway within the city may enter into and carry into effect agreements with respect to the purchase of such tramways or any of them or any part or parts thereof or with respect to the surrender or transfer of any lease thereof or with respect to the purchase or hire by the Corporation of any lands buildings works materials rolling stock or plant in connexion with any such tramways or with respect to the transfer to the Corporation of any of the powers of such owner or lessee as to the construction maintenance or working of the tramways or any of them.

Working and other agreements.

(2) The Corporation on the one hand and the owner or lessee of any tramway within or beyond the city which can be worked with any Corporation tramway (each of whom is in this section referred to as “the owning authority”) on the other hand may subject to the provisions of this Act enter into agreements with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):—

- (i) The working running over use management occupation and maintenance by any of the contracting parties of the undertakings and tramways of or leased to the other or others of them or any part or parts thereof respectively;
- (ii) The working and leasing of their respective tramways or any part thereof and the conveyance of traffic thereon;
- (iii.) The supply under any agreement for the undertakings and tramways of the contracting parties or any of them being worked by the other or others of them of carriages engines and horses necessary for the purposes and during the continuance of any such agreement and the employment of officers and servants;
- (iv) The supply to any of the contracting parties of motive power by the other or others of them;

A.D. 1903.

- (v) The interchange of traffic between the undertakings of or leased to the contracting parties or any of them ;
- (vi) The payment collection and apportionment of tolls rents fares charges or other receipts arising upon the respective tramways ;
- (vii) The appointment of joint committees for the carrying into effect of such agreements ;

And for the purposes of and during the continuance of any such agreement the Corporation or the owning authority working or running over managing or occupying any tramways shall in accordance with and to the extent provided by such agreement have and may exercise in respect of the tramways worked run over used managed occupied or maintained by them all such and the like powers rights and remedies for the taking collection and recovery of tolls fares and charges and otherwise howsoever as are by or under the Acts respectively relating to such tramways conferred upon the Corporation or owning authority :

Provided that no electrical energy shall be supplied or shall continue to be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

For the purposes of this section a tramway shall include a tramroad and light railway.

Enactments
in Sixth
Schedule.

46.—(1) From and after the acquisition by the Corporation of any tramway not owned by them within the city and from and after the expiration or other sooner determination of the lease of any tramway owned by them within the city the provisions of the Acts and Orders relating to tramways set out in the first and second columns of the Sixth Schedule to this Act applicable to such tramway respectively shall (except the provisions set out in the third column of the said schedule) cease to apply thereto and the provisions relating to tramways of this Act shall be substituted therefor and shall so far as the same are applicable extend and apply to such tramway and to the Corporation in relation thereto.

(2) Notwithstanding the foregoing provisions of this section all powers of borrowing possessed by the Corporation at the passing of this Act under the said Acts and Orders shall continue to be possessed and may be exercised by the Corporation to the like extent and in like manner and subject to the like powers and duties of the Corporation and to the like provisions in relation to repayment of the moneys from time to time borrowed and

otherwise as if this Act had not been passed and all mortgages and charges subsisting at the passing of this Act granted or created by the Corporation under the said Acts and Orders shall be and continue as valid and available for all purposes as if this Act had not been passed.

A.D. 1903.

47. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any of the Corporation tramways anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any Corporation tramway shall be liable to a penalty not exceeding twenty pounds.

Penalty for malicious damage.

48. All orders regulations and byelaws made by the Board of trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Orders &c. of Board of Trade.

49. Any penalty under this part of this Act or under any byelaws or regulations made under this part of this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of penalties.

50. The Corporation may provide and run omnibuses in connexion with the Corporation tramways when the running of carriages thereon is impracticable or during the construction alteration or repair thereof or in prolongation of any tramway route within the city the extension of which may be contemplated by the Corporation and may demand and take tolls and fares for the use of such omnibuses.

Omnibuses in connexion with tramways.

51. Notwithstanding any provisions contained in any Act or Order relating to any of the tramways of the Corporation the Conveyance of Mails Act 1893 shall extend and apply to all Corporation tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three.

Application of Conveyance of Mails Act 1893.

52.—(1) The Corporation shall apply all money received by them on account of revenue in respect of their tramway undertaking in manner and in the order following (that is to say):—

Application of revenue of tramway undertaking and deficiency of receipts.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking (including the

A.D. 1903*

maintenance of so much of the roads in which the tramways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870);

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments for the purposes of the undertaking;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the tramways of the Corporation or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of their tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the tramway undertaking of the Corporation shall be made good out of the borough rate made next after such deficiency is ascertained.

53. Nothing in this part of this Act contained shall exempt the Corporation or the tramway by this Act authorised from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

A.D. 1903.
 Provision as
 to general
 Tramway
 Acts.

PART IV.

STREETS BUILDINGS AND SEWERS.

54.—(1) The approval by the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

Approval of
 plan to be
 void after
 certain in-
 terval.

As to plans and sections approved after the passing of this Act within two years from the date of such approval;

As to the plans and sections approved before the passing of this Act within two years from the date of passing of this Act;

and at the expiration of those respective periods fresh notice and deposit and approval shall unless the Corporation otherwise determine be requisite.

(2) The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

55.—(1) Where any street or road in the city for the time being repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of any such street or road. The line which in any case the Corporation propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by the surveyor and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they

Corporation
 may define
 future line of
 streets.

A.D. 1903. — shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can with reasonable diligence ascertain. No new building erection excavation or obstruction shall be made nearer to the centre of the street or road than such line.

(2) The Corporation may and if required by the owner shall purchase the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Corporation as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under Part XXI. of the Act of 1883.

(3) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make compensation to the owner of and other persons interested in any land or building for any loss or damage they may sustain in consequence of such line of frontage being set back. And the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such land or building compensation in respect thereof for all damage loss or injury (if any) sustained by them by reason of the Corporation requiring the said line to be observed and kept.

(4) If after any such line shall be so defined and prescribed as aforesaid any person shall wilfully or negligently act contrary to this enactment he shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty of the like amount.

As to temporary and movable buildings.

56.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within twenty-one days after the delivery of the plan section and specification signify in writing their approval or disapproval of the proposed building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom

protection against fire and the period during which such building shall be allowed to stand. A.D. 1903.

(4) If any such proposed building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Corporation or before the expiration of the said twenty-one days without such approval or is in any respect not in conformity with the approved plan section and specification and with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof allowed by them the owner of such building shall be liable to a penalty not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be taken down or removed and any expense incurred by them in or about the taking down or removal of the building may be recovered from the owner of the building or from the person commencing erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the city with respect to new buildings ;
- (B) Any tent not remaining for more than seven days ;
- (C) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be taken down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be taken down or removed and any expense incurred by them in or about the taking down or removal of the structure or erection may be recovered from the owner thereof or from the person erecting or setting up the same at the discretion of the Corporation ;
- (D) Any wooden or other structure or erection erected or set up for the purpose of protecting or preventing the acquisition of any right of light ; and
- (E) Structures or erections erected or set up upon any station yard or approach road belonging to any existing railway company and used solely for the purposes of their railway.

(6) When a temporary or other building referred to in this section is taken down or removed by the Corporation under the

A.D. 1903. — powers of this section the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale to and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance to the owner of such building.

Entrances to courts not to be closed.

57.—(1) The entrance to any court or similar place shall not at any time after the passing of this Act be closed or narrowed or built over or the height or headway thereof lowered except with the consent in writing of the Corporation but such consent shall not be given if the access to or the ventilation of the court would in any way be impaired or diminished.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Crossings for horses or vehicles over footways.

58. Every person desirous of forming a communication for horses cattle or vehicles across any kerbed or paved footpath so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Corporation and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise and if any person drives or permits or causes to be driven any horse cattle or vehicle across any footway unless and until such a communication as aforesaid has been so made or on or along any part of any such footway other than the part over which such communication has been made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to such footway. Provided that nothing in this section shall be deemed to apply to the temporary crossing of footways during building operations if means satisfactory to the Corporation be taken to protect such footways from injury and for the convenience of foot passengers.

Dangerous places to be repaired or inclosed.

59.—(1) If any steps structure excavation well reservoir pond stream dam or bank be in the opinion of the Corporation for want of sufficient repair fencing or inclosure dangerous to the passengers along any street along which the public have the right to pass the

Corporation may order the owner within a reasonable period to be specified in such order to repair fence or inclose the same so as to prevent any danger therefrom. A.D. 1903.
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(2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the specified period the Corporation may within twelve months after service of the order cause to be done such works as may be reasonably necessary for effecting such repair fencing or inclosure and the expenses thereof shall be payable by the owner and may be recovered summarily as a civil debt unless the court of summary jurisdiction or the court of quarter sessions on appeal shall be of opinion under the circumstances of the case that such expenses should be borne by the Corporation.

(3) Nothing in section 75 of the Towns Improvement Clauses Act 1847 shall render it incumbent upon the surveyor to cause a hoard or fence to be put up in the case of a dangerous chimney.

60. From and after the passing of this Act—

What to be
deemed new
buildings.

The conversion of two or more buildings originally constructed as separate dwelling-houses into one dwelling-house ;

The reconversion into a dwelling-house of any building which has been discontinued as and appropriated for any purpose other than that of a dwelling-house ;

The conversion of a dwelling-house into any other building not intended for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the city into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The making of any external structural alteration or any addition to a building by raising any part thereof or making any projection therefrom but (provided such alteration or addition does not increase the number of storeys) so far as regards such alteration or addition only ; and

The roofing or covering over an open space between walls or buildings ;

shall for all the purposes of this Act the recited Acts and the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a “ new building.”

A.D. 1903.
Amendment
of Act of
1883 as to
private street
works.

61.—(1) Section 50 (Apportionment of expenses) of the Act of 1883 shall be read and have effect as if the following provision were added to that section (namely):—

(2) The Corporation may also if they think fit include any premises which do not front adjoin or abut on the street or part of a street but access to which is obtained from the street through a court passage or otherwise and which in their opinion will be benefited by the works and may fix the sum or proportion to be charged against any such premises accordingly.

Power to
Corporation
to grant
licences for
bridges over
streets.

62. The Corporation may grant to the owner or with consent of the owner to the lessee or occupier of any premises abutting on any street repairable by the inhabitants at large a licence to use a way (exclusive or otherwise) for himself his servants and agents at all times with or without cattle horses carts and carriages by means of a bridge over such street for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given but not exceeding twenty-one years on such terms or at such rent and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit Provided that any licence given under this power shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street If any person shall construct any such bridge without such licence or shall not construct or use the same in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Power to
prohibit cel-
lars in parts
of city liable
to flood.

63. The Corporation may prohibit in the parts of the city which are coloured pink on the map signed in duplicate by the Right Honourable Thomas Wodehouse Legh Baron Newton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred the construction of any cellar or basement storey in any building being a dwelling-house erected after the passing of this Act and may regulate the level of the ground floor of any new building in such parts of the city.

Trees or
shrubs over-
hanging
streets.

64. Where any tree hedge or shrub overhangs any street so as to obstruct or interfere with any tramway electric wire or the light from any public lamp or to interfere with the free passage of passengers the Corporation may serve a notice on the occupier of the premises on which such tree hedge or shrub is growing requiring him within seven days after such notice to lop the

tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage Section 36 (Trees overhanging streets) of the Act of 1883 is hereby repealed. A.D. 1903.

65.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this Act called a “sewage sewer”) and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this Act called a “surface water sewer”). Provisions as to separate system of sewerage.

(2) Where under the provisions of the Public Health Acts or the recited Acts the Corporation have power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly.

(3)—(A) Where in any street separate sewage sewers and surface water sewers shall have been provided no sewage shall be allowed to pass from any premises into the surface water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation :

(B) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

(C) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Corporation may if they think fit make all such alterations.

66. Section 11 (Powers of Corporation respecting construction of drains) of the Act of 1883 shall be read and have effect as if the following words were added at the end of that section (namely) “And if any such owner or occupier shall construct or commence the construction of any such drain after the Corporation shall have given notice of their intention to construct the same he shall be Amendment of section 11 of Act of 1883.

A.D. 1903. liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.”

Sky signs.

67.—(1) (A) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

(B) Provided that in any of the following cases a licence of the Corporation under this subsection shall become void namely :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ;
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

(c) Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section “sky sign” means—

A.D. 1903.
—

Any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support ;

Any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way :

But shall not include—

(A) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement ;

(B) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(c) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

PART V.

SANITARY PROVISIONS.

68. If it appear to the Corporation that two or more houses plans for which have been approved after the passing of this Act may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is

Corporation may order houses to be drained by a combined drain.

A.D. 1903. — about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses incurred by the Corporation in relation to the construction of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if paid by the Corporation may be recovered by the Corporation from such owners or occupiers in a summary manner before a court of summary jurisdiction Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

Inspection of
drains, &c.

69.—(1) On complaint made on oath by the surveyor medical officer of health or the inspector of nuisances that he has reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to such surveyor medical officer of health or inspector of nuisances to jointly or severally inspect any drain sanitary convenience or cesspool or any water supply sink trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for that purpose or for the purpose of ascertaining the course of any such work the surveyor medical officer or inspector of nuisances or their authorised assistants (on production of their authority if so required) at all reasonable times in the daytime after not less than twelve hours notice in writing has been given to the occupier of the premises to which such drain sanitary convenience or cesspool water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises and in case of emergency without notice may enter with or without workmen on such premises and cause the ground to be opened wherever the surveyor medical officer or inspector of nuisances or their authorised assistants think fit doing as little damage as may be and if any person obstructs or attempts to obstruct or incites any person to obstruct the surveyor medical officer or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(2) If upon such inspection it shall be found that no nuisance exists or that the nuisance is not caused by or is not attributable to such drain sanitary convenience or cesspool water supply sink trap

syphon pipe or other work and apparatus the Corporation shall cause any of such works or apparatus which they may have taken up or disturbed to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Corporation and full compensation shall be made by them for all damage or injury done or occasioned by such examination. A.D. 1903.

(3) If upon such inspection any drain sanitary convenience or cesspool water supply sink trap syphon pipe or other work or apparatus is found to be in such a state as to cause a nuisance the Corporation shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to abate the nuisance and if such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings or the Corporation if they think fit in lieu of proceeding for a penalty may enter on the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

(4) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

70. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer and the surveyor shall as soon as can be cause the ground to be closed and any damage done to be made good and the whole expense of and attending such examination shall be defrayed by the Corporation.

Corporation may require old drains to be laid open for examination by surveyor before communicating with sewers.

71. The powers of the Corporation under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain sanitary conveniences and lavatories in or under any street repairable by the inhabitants at large for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary conveniences (other than an urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such sanitary conveniences and lavatories.

Public conveniences and lavatories.

A.D. 1903. — and as to the conduct of persons resorting to the same and may let any such sanitary conveniences and lavatories for such periods and upon and subject to such terms and conditions as they may think fit.

Streams not to be covered over except in accordance with plans. **72.** It shall not be lawful to culvert or cover over any stream or watercourse within the city except in accordance with plans and sections to be submitted to and approved of by the Corporation and any person acting in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Corporation may require removal or alteration of urinals. **73.—**(1) If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Corporation be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove such urinal or convenience.

(2) Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Wilful damage to drains waterclosets &c. **74.** Any person who shall cause any drain watercloset earth-closet privy or ash-pit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by wilfully stopping up interfering with or improperly using the same or any such water supply apparatus pipe or work shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Reconstruction of drains. **75.—**(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws relating to the drainage of new buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to reconstruct drain if laid in contravention of Public Health Act. **76.** Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the Corporation may cause the drain in respect of which default has been made to be relaid or amended or remade as

the case may require and may recover the expenses incurred by them in so doing from such person. A.D. 1903.

77. From and after the commencement of this Act the provisions of section 22 subsection (2) of the Public Health Acts Amendment Act 1890 as to the report of the surveyor shall extend and apply to the medical officer of health and such subsection so far as the same affects the city shall be read as if the words "their surveyor or medical officer of health" were inserted instead of the words "their surveyor."

Extending provisions of section 22 (2) of Public Health Acts Amendment Act 1890.

78. The term "ash-pit" in the Public Health Act 1875 in the Act of 1883 and in this Act shall for the purposes of the execution of those Acts include any ash-tub or other movable receptacle for the deposit of ashes or other refuse matter and every such ash-tub or receptacle shall be of such size and pattern as may be prescribed by byelaws which the Corporation are hereby empowered to make Any ash-tub or other receptacle which does not satisfy the requirements of the Corporation shall be deemed insufficient within the meaning of the provisions of the Public Health Act 1875 and the Act of 1883 Provided that this section shall not apply to any ash-tub or other receptacle in use at the commencement of this Act so long as the same is in proper order and condition Section 12 (Definition of "ash-pit" in Public Health Act 1875) of the Act of 1883 is hereby repealed.

Definition of ash-pit.

79. The Corporation may if they shall think it just and proper according to the circumstances contribute not exceeding one-half the cost incurred in converting any existing closet accommodation (other than a watercloset) provided at or in connexion with any dwelling-house in the city into a watercloset or waterclosets.

Power to contribute to cost of conversion of existing closet accommodation into waterclosets.

80. No trade refuse building materials or rubbish of a like description shall be deposited in any closet privy cesspool ash-pit or ash-tub and if any such refuse materials or rubbish be so deposited the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made.

Charge for emptying privies of trade refuse.

81. The Corporation may appoint more than one inspector of nuisances and section 189 of the Public Health Act 1875 and section 24 of the Local Government Act 1888 shall for the purposes of the execution of those Acts within the city be construed accordingly.

As to appointment of inspectors of nuisances.

A.D. 1903.

PART VI.

INFECTIOUS DISEASE.

Repeal of sections of Act of 1883 relating to infectious disease.

82. Sections 20 to 28 relating to infectious disease of the Act of 1883 are hereby repealed.

Corporation may pay expenses of person in hospital.

83. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Corporation may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Wake not to be held over body of person dying of infectious disease.

84. It shall not be lawful to hold any wake over the body of any person who has died of any infectious disease and the occupier of any house or premises or part of a house or premises who permits or suffers any such wake to take place in such house or premises or part of a house or premises and every person who attends to take part in such wake shall be liable to a penalty not exceeding forty shillings.

Protection against infection from books from lending libraries.

85. No person shall take out of any lending library any book for use in any house in which there is a person suffering from any infectious disease and no person shall return to any lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Byelaws regulating hospitals.

86. The Corporation may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Corporation.

Dairymen to notify infectious disease existing among their servants &c.

87.—(1) Every dairyman supplying milk within the city from premises whether within or without the city shall notify to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy so soon as he becomes aware or has reason to suspect that such infectious disease exists.

(2) Any such dairyman who shall fail to comply with this enactment shall be liable to a penalty not exceeding forty shillings.

PART VII.

A.D. 1903.

MILK PROVISIONS.

88. Every person who knowingly sells or suffers to be sold or used for human consumption within the city the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty for selling milk of diseased cows.

89. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the city who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Penalty on failing to isolate diseased cows.

90.—(1) Every dairyman who supplies milk within the city and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

Obligation to notify cases of tuberculosis.

(2) Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

91.—(1) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the city for examination samples of milk produced or sold or intended for sale within the city.

Power to take samples of milk.

(2) The like powers in all respects may be exercised outside the city by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

92.—(A) If milk from a dairy situate within the city is being sold or suffered to be sold or used within the city the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

Power to inspect cows and to take samples of milk.

A.D. 1903.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the city from consumption of the milk supplied from a dairy situate within the city or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the city until the order has been withdrawn by the Corporation.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the city from which milk is being sold or suffered to be sold or used within the city is likely to cause tuberculosis in persons residing within the city the powers conferred by this section may in all respects be exercised in the case of such dairy Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the city on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the city.

(G) If any person after any such order has been made supplies any milk within the city in contravention of the order or sells it for

consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues. A.D. 1903.

(ii) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

93.—(1) The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the city or at his option if the dairy is situate outside the city to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the city and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. Appeal.

(2) The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

(3) The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

94.—(1) If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order. Compensation to dairyman.

(2) The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of

A.D. 1903. — compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of this part of Act.

95. The Corporation shall cause to be given public notice of the effect of the provisions of this part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this part of this Act shall come into operation at such time not being less than one month after the first publication of such advertisement as aforesaid as the Corporation may fix.

Procedure.

96. Offences under this part of this Act may be prosecuted and penalties may be recovered by the Corporation before a court of summary jurisdiction having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

Expenses of this part of Act.

97. All expenses incurred by the Corporation in carrying into execution the provisions of this part of this Act shall be chargeable upon the improvement rate and the Corporation may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the city. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

PART VIII.

ICE CREAM.

For regulating manufacture and sale of ice cream &c.

98.—(1) Any person being a manufacturer of or merchant or dealer in ice cream or other similar commodity who within the city—

- (A) Causes or permits ice cream or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ; A.D. 1903.

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice cream commodity or materials so destroyed.

PART IX.

COMMON LODGING-HOUSES.

99.—(1) The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person who is appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be. Regulations as to common lodging-house keepers.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

100.—(1) Every common lodging-house shall be provided with sufficient and suitable sanitary conveniences having regard to the number of lodgers who may be received therein and also with proper separate sanitary conveniences for persons of each sex. Sanitary conveniences in common lodging-houses.

(2) Where it appears to the Corporation on the report of their inspector of nuisances that the provisions of this section are not complied with in the case of any common lodging-house the Corporation may if they think fit by notice require the keeper thereof to make such alterations and additions therein as may be required to provide such sufficient suitable and proper sanitary conveniences as aforesaid.

A.D. 1903.

(3) Any person who shall neglect or refuse to comply with any such notice shall be liable for each default to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Registration
of common
lodging-
houses and
keepers.

101.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year.

(2)—(A) The Corporation may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(B) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and to award costs.

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the city and every person who after the thirty-first day of December one thousand nine hundred and four shall keep a common lodging-house without the registration of such person and of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Notice to
common
lodging-
house
keepers.

102. Notice of the provisions of this part of this Act shall be served upon the keeper of every common lodging-house within the city either personally or by leaving the same at the common lodging-house.

PART X.

POLICE.

Regulation]
of traffic at
fires.

103. The officer in charge of the police at any fire in the city shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who

wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds. A.D. 1903.

104. The following sections of the Town Police Clauses Act 1847 are incorporated with this Act and shall apply within the city (that is to say):— Incorporation of sections 11 and 12 of Town Police Clauses Act 1847.

Section 11 Constables dismissed to deliver up accoutrements.

Section 12 Penalty for unlawful possession of accoutrements or for assuming the dress of constables.

105. Any market of the Corporation and any unfenced ground adjoining or abutting on any street shall be deemed streets for the purpose of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:— Markets and unfenced ground to be streets for certain purposes.

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle;

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution;

Every person who wilfully and indecently exposes his person;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language;

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework;

Every person who throws or lays any dirt litter or ashes or night soil or any carrion fish offal or rubbish on any street.

106. Any unfenced ground or any court or passage adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and any Act for the time being in force altering or amending the same be deemed to be a public place. As to unfenced grounds and courts.

107. The Corporation may provide and maintain ambulance vans for use in case of accidents within the city and they may employ officers in connexion therewith and they may make such charges for the use of the said vans and for assistance rendered by such officers as they may think fit and the expense of providing Corporation may provide &c. ambulance vans.

A.D. 1903. — and maintaining such ambulance vans and the employment of officers in connexion therewith shall be chargeable on the improvement rate.

PART XI.

MARKETS.

Market tolls. **108.**—(1) The Corporation may demand and receive tolls rents stallages and charges (not exceeding the additional or substituted tolls rents stallages and charges specified in the Fourth Schedule to this Act) from persons selling or offering or exposing for sale animals or things in any market of the Corporation or using or occupying stalls standings or other conveniences in any such market or frequenting any market and the regulations set forth in the said schedule shall apply and have effect.

(2) Part VII. (Markets and Slaughter-houses) of the Act of 1883 including the incorporated provisions of the Markets and Fairs Clauses Act 1847 shall so far as applicable extend and apply with the necessary modifications to and with respect to the additional tolls rents stallages and charges authorised by this section.

Byelaws as to appropriation of space &c.

109. The Corporation may make byelaws with respect to their markets for all or any of the following purposes (that is to say):—

For appropriating the place or position for the reception deposit or exposure for sale in the market of any animals articles and things brought into the market for sale;

For preventing the sale or exposure for sale in the market of any animals articles and things not being marketable commodities specified in the several schedules of tolls in force for the time being.

Repeal of section 90 of Act of 1883.

110. Section 90 (Restriction on sale of cattle &c. except in markets) of the Act of 1883 except the first proviso of that section is hereby repealed and in construing section 13 of the Markets and Fairs Clauses Act 1847 as incorporated in the Act of 1883 the prescribed limits shall mean the city.

Penalty for evading payment of tolls and charges.

111. If any person liable to pay any toll rent stallage or charge in respect of any animals articles matters or things whatsoever shall give an incorrect account of the same or make any false statement in relation thereto or refuse or neglect to give a correct account thereof with a view to evade or attempt to evade the payment of such toll rent stallage or charge or any part thereof every such person shall be liable to a penalty not exceeding forty

shillings and to pay the amount of the toll rent stallage or charge so evaded or attempted to be evaded. A.D. 1903.

112. Section 103 (Ejectment for repeated offences) of the Act of 1883 shall be read and have effect as if the words “against any offence specified in sections 101 or 102 of this Act or in section 15 of the Markets and Fairs Clauses Act 1847” were inserted therein in lieu of the words “against the last preceding section.” Amendment of section 103 of Act of 1883.

113.—(1) The Corporation may on any land for the time being belonging to them or acquired by them for the purpose construct and maintain in connexion with any markets or public slaughter-houses or abattoirs established by them a refrigerator or cold air store with all machinery apparatus and appliances necessary for the proper working and user thereof and for the storage and preservation of meat and other articles of food Provided that the Corporation shall not use for the purposes of this section any lands vested in them for any other purposes except with the consent of the Local Government Board and upon and subject to such terms and conditions as that Board may impose. Power to establish cold air stores &c.

(2) The Corporation may demand and take in respect of the use of any such refrigerator or cold air store such charges as the Corporation may determine.

(3) The Corporation may lease for any term not exceeding twenty-one years any such refrigerator or cold air store or any part thereof at such rent and on such terms and conditions as the Corporation may think fit.

PART XII.

GAS.

114.—(1) The Corporation may in any private street within the city provide fix and maintain and supply with gas or other illuminant (including electric light) such lamps and fittings therefor as they shall think necessary for the proper lighting of such private street and may cause the same to be kept lighted during such hours as they think proper and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the supply of gas or other illuminant. As to lighting private streets.

(2) For the purposes of this section the expression “private street” shall include any street not repairable by the inhabitants at large and also any cul-de-sac entry yard or place whether open or enclosed and whether a thoroughfare or not.

A.D. 1903.

(3) The powers of this section shall not be exerciseable in a private street which is not a street within the meaning of the Public Health Act 1875 without the consent of the owner.

(4) This section is in addition to and not in derogation of any other power to light streets now vested in the Corporation.

Power to lay gas pipes in streets not dedicated to public use.

115. The Corporation may on the application of the owner or occupier of any premises within the gas limits of supply of the Corporation abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Amendment of section 15 of Gasworks Clauses Act 1871.

116. Section 15 (Meters not to be connected or disconnected without notice) of the Gasworks Clauses Act 1871 shall in regard to its application to the gas undertaking of the Corporation be read and apply as if the word "person" were substituted for the word "consumer" in the first line of that section.

PART XIII.

ELECTRICITY.

Supply of electrical energy outside city and transfer of undertaking.

117.—(1) If the local authority for any district adjoining or near to the city are for the time being authorised by Parliament to supply energy or if any company shall be authorised to supply energy in any such district the Corporation and any such local authority or company may with the approval of the Board of Trade enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such local authority or company.

(2) And any such local authority authorised to transfer their undertaking may with the approval of the Board of Trade transfer their electric undertaking to the Corporation and the Corporation may accept such transfer and may raise money for the purpose of the undertaking and transfer under the provisions of the Electric Lighting Acts 1882 and 1888 in like manner as if such district were part of the area of supply under the Birmingham Corporation Act 1899.

Supply of electrical energy for traction purposes.

118. The Corporation on the one hand and any local authority company or person owning or working light railways tramways or tramroads within or without the city on the other hand may enter into and carry into effect agreements for the supply by the

Corporation to such authority company or person of electrical energy for the purposes of such light railways tramways or tramroads Provided that no energy shall be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

A.D. 1903.

119. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person In case the Corporation and the person demanding such supply of electrical energy shall fail to agree on the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an arbitrator to be appointed by the Board of Trade.

As to supply of electrical energy in case of a separate supply.

PART XIV.

FINANCIAL PROVISIONS.

120.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes herein-after mentioned any sum or sums of money not exceeding the respective amounts following:—

Power to borrow.

- (A) For the construction of the tramway by this Act authorised the reconstruction of the existing tramways in Aston Street and Aston Road and for other tramway purposes the sum of fifty thousand pounds:
- (B) For and in connexion with the purchase of land for and the erection of a destructor and electrical generating station the sum of twenty-five thousand pounds:
- (c) For paying the costs of this Act as herein-after provided the sum requisite for that purpose.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for tramway purposes as the Board of Trade may sanction and such further sums of money for any of the other

A.D. 1903. — purposes mentioned in this section or for other the purposes of this Act as the Local Government Board may sanction.

(3) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the several revenues of the Corporation are hereby made specifically liable and such moneys are hereby primarily chargeable accordingly (that is to say) :—

As regards purpose (A) herein-before mentioned and other tramway purposes the revenue arising from the tramway undertaking of the Corporation ;

As regards all other purposes of this Act the improvement rate.

Period for repayment.

121. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say) :—

As to moneys borrowed for the purpose (A) in the last preceding section of this Act mentioned within twenty-five years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (B) in the last preceding section of this Act mentioned within thirty years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (C) in the last preceding section of this Act mentioned within five years from the date or dates of borrowing the same ;

As to moneys borrowed with the sanction of the Board of Trade or the Local Government Board within the periods not exceeding sixty years sanctioned by those Boards respectively.

Mode of raising money.

122. The Corporation may raise all or any sums which they are authorised to borrow under this Act either by the creation and issue of Birmingham Corporation stock or by mortgage.

As to moneys raised by stock.

123. The amounts of the annual sums payable to the Birmingham Corporation Loans Fund under the Birmingham Corporation Stock Orders 1880 and 1881 towards the redemption or repayment of stock created and issued by the Corporation for the purposes of this Act shall be such as with accumulations at a rate not exceeding three pounds per centum per annum will suffice to redeem at par such stock within the prescribed periods.

124. All moneys (not being represented for the time being by gas annuities and water annuities) borrowed or to be borrowed by the Corporation under any statutory borrowing powers (including borrowing powers under this Act) and not raised by the issue of Corporation stock (all such moneys being herein-after referred to as "the principal moneys") shall be charged indifferently upon all the revenues of the Corporation and the interest for the time being payable thereon shall rank equally with interest or dividends on all other securities of the Corporation created or granted in pursuance of any statutory borrowing power.

A.D. 1903.
Security for
principal
moneys.

All mortgages hereafter granted in respect of principal moneys shall rank equally and *pari passu* without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other mortgages already granted by the Corporation and with all stock issued by the Corporation subsequently to the passing of the Birmingham Corporation (Stock) Act 1900 :

Provided However that the provisions of this part of this Act shall not prejudicially affect the rights of any existing mortgagee of the Corporation who shall have the same rights and remedies as if this Act had not been passed.

The forms contained in the Seventh Schedule to this Act or forms to the like effect varied as circumstances may require may be used and shall be sufficient for the purposes of this section.

125.—(1) For payment of interest on the principal moneys there shall be established and formed a fund called the loans interest fund (herein-after referred to as "the interest fund").

Interest fund.

(2) In each year the Corporation shall pay into the interest fund the dividends income and annual proceeds derived from the investment of the sinking fund provided for by this Act and such further sum or sums as together with such payments shall be equal to the aggregate amount of interest payable in that year on the principal moneys.

(3) The amount of such sum or sums in the case of principal moneys in respect of which provision for repayment is made by the payment of equal annual instalments of principal or of principal and interest combined shall be the amount provided by the instrument creating the charge and in the case of principal moneys in respect of which provision for repayment is made by means of a sinking fund shall be the amount ascertained to be

A.D. 1903. — required in that behalf by apportionment of the aggregate amount of interest payable on such last-mentioned principal moneys (after giving credit for the income derived from investment as aforesaid) among the several revenues of the Corporation according to the respective amounts of those principal moneys (after deducting therefrom the amount paid into the sinking fund in respect thereof) the interest whereon is properly payable out of such revenues respectively.

Application of interest fund. **126.** The Corporation shall from time to time apply the interest fund in paying the interest on the principal moneys.

Account of interest fund. **127.** As parts of the general account of the interest fund the Corporation shall keep separate accounts distinguishing and showing in relation to each undertaking or purpose for or in respect of which any of the principal moneys are borrowed by them all moneys paid into the interest fund from the revenues of the Corporation in respect of the interest on the several amounts of the principal moneys chargeable to that undertaking or purpose.

Method of repayment of principal moneys. **128.**—(1) The Corporation shall provide for the repayment of the principal moneys or any of them within the periods sanctioned for the repayment thereof (herein-after called “the prescribed periods”) either by the payment of equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods or partly by another or others of them.

(2) In case the Corporation decide to repay any of the principal moneys by means of a sinking fund they shall each year throughout the prescribed periods respectively pay to such fund a sum or sums equal to the aggregate amount of all sums payable in that year for the purpose of providing within the prescribed periods respectively sums equal in amount to the respective amounts of the principal moneys for the repayment of which the fund is established.

(3) The yearly sums to be paid into the fund in respect of each amount of the principal moneys for the repayment of which the fund is established shall be either—

(A) The equal annual sum which if accumulated at compound interest at a rate not exceeding three per centum per annum would be sufficient after payment of all expenses to repay that amount in the prescribed period and accumulations of the said equal annual sums at compound interest at the

rate per centum on which the said equal annual sum is calculated ; or A.D. 1903.

- (B) The equal annual sum which if continued throughout the prescribed period would be sufficient without accumulations to repay that amount within the prescribed period.

The said yearly payments in respect of each amount of the principal moneys shall be continued throughout the prescribed period.

(4) If it appear to the Local Government Board (in this part of this Act referred to as “the Board”) at any time that the said several yearly sum or sums as aforesaid or any of them are insufficient to provide within the prescribed periods sums equal in amount to the amount of the principal moneys in respect of which such yearly sum or sums respectively are paid the amount of such yearly sum or sums shall be increased to such extent as the Board may determine and the Corporation with the consent of the Board may at any time reduce such yearly sum or sums either temporarily or permanently in any case in which it appears to the Board that such yearly sum or sums would if maintained be more than sufficient to provide within the prescribed period a sum equal in amount to the amount of the principal moneys in respect of which such yearly sum or sums are required to be paid and if the amount paid into the sinking fund at any time in respect of any particular amount of the principal moneys is in the opinion of the Board sufficient with the accumulations to arise thereon (if any) to provide within the prescribed period a sum equal in amount to the amount of such principal money the Corporation with the consent of the Board may discontinue the payment of the yearly sum or sums to the sinking fund in respect of that amount of the principal moneys.

(5) All moneys which at the passing of this Act are standing to the credit of any sinking fund in respect of principal moneys and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

129. Unless the Board otherwise direct the Corporation shall pay into the sinking fund and then shall carry to the proper separate account forming part of the general account of the sinking fund all such money being capital or in the nature of capital and not being wholly or in part otherwise appropriated or required to be otherwise applied as shall from time to time arise from any sale lease or other disposition of land or other property of the

Payment of
sale money
&c. to sink-
ing fund.

A.D. 1903. — Corporation in respect of or for which any of the principal moneys have been borrowed and as shall from time to time arise from any other source.

Application
of sinking
fund.

130. The Corporation may at any time apply the whole or any part of the sinking fund as follows (that is to say):—

- (1) In or towards the discharge of the principal moneys or any of them for the repayment of which the fund is established provided that the yearly sums to be paid to the fund shall not be affected by such application :
- (2) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the sinking fund and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a statutory borrowing power Provided that when exercising this power the Corporation shall—
 - (A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund ;
 - (B) Credit such account or accounts in the sinking fund as the Corporation may determine with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund under subsection (1) of this section ;
 - (C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this part of this Act as to repayment and re-borrowing shall apply thereto accordingly :
- (3) When any of the principal moneys are discharged by the application of any part of the sinking fund the principal

moneys so discharged shall be deemed to be in respect of such one or more of the statutory borrowing powers under which the principal moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Corporation shall determine. Provided that the amount of principal moneys deemed to be discharged in respect of any statutory borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon.

A.D. 1903.

131. Pending or in default of any such application of the sinking fund as aforesaid the Corporation shall invest the same in any statutory security and the dividends income and annual proceeds thereof may be carried by the Corporation to the credit of the interest fund.

Investment
of sinking
fund.

132.—(1) As part of the general account of the sinking fund the Corporation shall keep—

Account of
sinking fund.

(A) An account showing the securities on which all sums paid into the sinking fund are from time to time invested; and

(B) Separate accounts relative to each undertaking or purpose for or in respect of which any principal moneys for the repayment of which the sinking fund is established were borrowed; and

(C) Separate accounts relative to such last-mentioned principal moneys in respect of each statutory borrowing power so exercised.

(2) Those separate accounts shall distinguish and show—

(D) The amounts of principal moneys outstanding for the time being chargeable to each undertaking or purpose and respectively attributable to the exercise of the several statutory borrowing powers if more than one relating to that undertaking or purpose; and

(E) The several amounts of principal moneys discharged by application of the sinking fund.

(3) Those separate accounts shall further distinguish and show in relation to each undertaking or purpose—

(F) All money being capital or in the nature of capital paid into the sinking fund and in the judgment of the Corporation properly attributable to that undertaking or purpose; and

A.D. 1903.

- (g) All money and securities transferred to the sinking fund as having formed part of any other sinking fund; and
- (h) All money paid into the sinking fund as contributions from the revenues of the Corporation in respect of the discharge of those several amounts of principal moneys.

Payments to interest and sinking funds how to be provided.

133.—(1) The yearly sum or sums to be provided under the provisions of this part of this Act shall be provided by contributions from the several revenues of the Corporation (if any) specially made liable to provide the same by or under any statutory borrowing power or by any resolution of the Corporation having reference to the respective borrowing powers and if as regards any statutory borrowing power there is no such specific liability then from the several revenues out of which the respective contributions would be properly payable and in default thereof or subject thereto out of the borough fund and borough rate or out of the improvement rate as the Corporation having regard to the provisions of this Act and the objects for which the statutory borrowing power was exercised may consider equitable.

(2) The Corporation shall from time to time in order to raise the amounts of the several contributions as aforesaid out of their several revenues do all such acts exercise all such powers collect all such moneys and make and levy all such rates as they lawfully can or ought to do exercise collect make and levy for the purpose of or in relation to the respective statutory borrowing powers in exercise whereof the several principal moneys are raised.

Incorporation of certain sections of Public Health Act 1875 and Act of 1883.

134. Subject to the provisions of this Act as regards the form of mortgage and transfer of mortgage sections 236 (Form of mortgage) 237 (Register of mortgages) 238 (Transfer of mortgages) 239 (Receiver may be appointed in certain cases) of the Public Health Act 1875 and section 228 (Special provisions for 10% mortgages) of the Act of 1883 shall apply mutatis mutandis to all mortgages granted by the Corporation.

Certain regulations of Public Health Act not to apply.

135. The powers of borrowing money given by this Act or the recited Acts shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Power to purchase annuities and rentcharges.

136.—(1) Notwithstanding anything contained in the recited Acts the Corporation may from time to time purchase all or any of the gas annuities and water annuities at such price as may be

agreed upon between the Corporation and the holders thereof respectively and any annuity so purchased shall be extinguished. A.D. 1903.

(2) The Corporation may also purchase and extinguish any rentcharges granted by them under the Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876 for such sum as may be agreed upon between the persons entitled to such rentcharges and the Corporation.

(3) The Corporation may in accordance with the provisions of this Act borrow such sum or sums as they may require for the purposes of this section Provided that the Corporation shall pay off all moneys raised by them—

(A) For the purchase and extinction of the gas and water annuities within the same periods as are incident to the provisions for redemption of gas and water annuities respectively; and

(B) For the purchase and extinction of the rentcharges herein-before mentioned within sixty years from the respective dates of borrowing.

(4) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the several revenues of the Corporation herein-after specified are hereby made specially liable and such moneys are hereby primarily chargeable accordingly (that is to say) :—

As regards the purchase of gas annuities the revenue arising from the gasworks undertaking of the Corporation;

As regards the purchase of water annuities the revenue arising from the waterworks undertaking of the Corporation;

As regards the purchase of rentcharges the revenue arising from the dwelling-house improvement fund.

137. The Corporation shall except as herein-after provided have power to re-borrow for the purposes of paying off any principal moneys which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow Provided that the Corporation shall not have power to re-borrow in respect of any principal moneys discharged by means of the sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purposes As to re-borrowing.

[Ch. excii.] *Birmingham Corporation Act, 1903.* [3 EDW. 7.]

A.D. 1903. — also that any principal moneys re-borrowed shall be deemed to form the same loan as the money in respect of the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application
of money
borrowed.

138. All principal moneys borrowed by the Corporation shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable. Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Corporation with the approval of the Board determine.

Protection of
lenders from
inquiry.

139. A person lending any principal moneys to the Corporation shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to regard
trusts.

140. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the moneys paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any of such moneys.

Saving for
power to sell
lands &c.

141.—(1) Nothing in this part of this Act shall affect any power or duty of the Corporation to sell lease or otherwise dispose of any land or property of the Corporation or to apply any purchase money or other money arising thereby in discharge of any charge on that land or property or the revenues thereof (other than the charge of principal moneys created under this Act) or affect any claim of any person under such first-mentioned charge.

(2) That land or property shall in the hands of the purchaser or other person taking the same under the sale lease or other disposition be by virtue of this Act absolutely freed from the charge of principal moneys created under this Act and he shall

not be concerned to see to the application of that purchase money or other money or be answerable for any loss or misapplication thereof. A.D. 1903.
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142. The Corporation shall furnish all such information and returns (if any) to the Board with regard to the exercise of the powers contained in this part of this Act as the Board shall from time to time require. And in particular the treasurer of the city shall within forty-two days after the expiration of each year during which any sum is required to be set apart for the sinking fund or any instalment is required to be paid in respect of any of the principal moneys transmit to the Board a return in such form as may be prescribed by the Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of any wilful default in making such return the treasurer shall be liable to a penalty of not exceeding twenty pounds which shall be paid to the Board and shall be recoverable by the Board in the same manner as penalties recoverable under the Public Health Act 1875 in a summary manner may be recovered by parties aggrieved within the meaning of that Act. Information
and return to
Board.

If it appear to the Board by such return or otherwise that the Corporation have failed to pay any instalment or to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Act the Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

143. Instead of raising for any purposes by the creation and issue of stock or of mortgages money which they are authorised to raise by either of those methods (whether under this Act or any other Act of Parliament or otherwise howsoever) the Corporation Provisions as
to raising
money by
bills.

[Ch. cxcii.] *Birmingham Corporation Act, 1903.* [3 EDW. 7.]

A.D. 1903. — may if they see fit raise for those purposes such money by means of bills subject to and in accordance with the following provisions :—

- (1) Bills issued by the Corporation shall be called “ Birmingham Corporation bills ” :
- (2) A Birmingham Corporation bill shall be a bill in the form prescribed by regulations made in pursuance of this Act for the payment of the sum named therein in the manner and at the date therein mentioned so that the date be not less than three nor more than twelve months from the date of the bill :
- (3) Such bills may be offered for purchase by tender in such manner on such conditions and after public advertisement in such manner as the Corporation determine :
- (4) The bills shall be issued under the authority of a warrant sealed by the Corporation :
- (5) Each bill shall be for the amount directed by the Corporation not being less than five hundred pounds :
- (6) Each bill shall be under the seal of the Corporation :
- (7) A register of the bills issued and renewed by the Corporation shall be kept by the treasurer or such other person as may be appointed by the Corporation and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Corporation :
- (8) The Corporation shall not issue bills payable to bearer :
- (9) The Corporation shall before issuing any bill under this Act from time to time make regulations with respect to bills subject to and in accordance with this Act and shall furnish to the Local Government Board a copy of any regulations so made Such regulations shall provide—
 - (A) For regulating the preparation form mode of issue mode of payment and cancellation of bills ;
 - (B) For regulating the issue of a new bill in lieu of one defaced lost or destroyed ;
 - (C) For preventing by the use of counterfoils or of a special description of paper or otherwise fraud in relation to bills ;
 - (D) For the proper discharge to be given upon the payment of a bill :

- (10) The Corporation may enter into such arrangements with any bank for carrying into effect the provisions of this Act with respect to the issue of bills and to the payment of the principal sum named therein and to all matters relating thereto and for the proper remuneration of such bank with reference thereto as they may think proper. Such remuneration shall be apportioned between the several funds or rates to which the principal moneys raised by the bills are chargeable : A.D. 1903.
- (11) The amount of money received by the Corporation in respect of a bill shall be deemed to be principal money raised by means of such bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised :
- (12) The Corporation shall provide from the same source and pay at the appropriate times into a sinking fund or sinking funds the same sums for repayment of the principal money so raised as they would have done if mortgages of the same amount had been issued and such fund or funds shall be dealt with in the same manner as if the same were a mortgage sinking fund and the Corporation shall pay the interest on the principal money out of the fund or rate to which the principal money so raised is charged :
- (13) The aggregate amount payable on bills current at any one time shall not exceed the sum of five hundred thousand pounds except by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills :
- (14) The Corporation may subject to the provisions of the preceding subsection renew bills at maturity :
- (15) Money raised by the issue of bills shall be employed by the Corporation for the purpose of the several statutory borrowing powers in respect of which the bills are respectively issued :
- (16) For the repayment of the principal money raised by bills the Corporation may raise money by the creation of stock or issue of mortgages or further bills but save as aforesaid the powers given to the Corporation to raise moneys by the creation of stock or mortgages shall be suspended to the extent to which moneys have been raised by the issue of bills :

A.D. 1903. .

(17) A Birmingham Corporation bill shall entitle the holder to payment at maturity of the sum expressed in such bill to be payable and shall be charged on all the revenues of the Corporation :

(18) The treasurer shall within forty-two days after the thirty-first day of March in any year during which any bills have been issued paid off or are outstanding under this section transmit to the Local Government Board a return in such form as the Board may prescribe and containing all such particulars as they may require in regard to the issue and payment of bills by the Corporation.

Power to lend loans or sinking funds in statutory securities.

144. The Corporation may invest any moneys belonging to them standing to the credit of any sinking fund or loans fund in any statutory security.

Date of closing books of gas and water annuities.

145. Notwithstanding anything in the recited Acts or in the Companies Clauses Consolidation Act 1845 incorporated with any of them the Corporation may from time to time close the transfer books of the gas and water annuities on any day in the month next preceding that in which the said annuities are payable and keep the said books closed for such period as they may think proper but so that the said books be not at any time so closed for more than fifteen days and the Corporation shall on each occasion of closing the said books give notice of the day upon which and the period during which the said books will be and remain closed by advertisement in one daily morning newspaper circulating generally in the City of Birmingham published at least seven days previously to the day upon which the said books are to be closed and the persons who on the day of such closing are registered as holders of gas and water annuities shall as between them and the transferees of the said annuities be entitled to the half-yearly payment becoming payable next after that day.

Expenses of execution of Act.

146. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and rate or improvement rate as the Corporation may in their discretion having regard to the object of the expenditure deem just.

Corporation may determine to which undertaking expenses &c. to be assigned.

147. In the exercise of the borrowing powers of the Corporation under this Act and the keeping of the accounts of the Corporation in regard to their tramway undertaking and their electric lighting undertaking the Corporation shall have full power to determine to which undertaking any expense matter or thing arising under this Act shall be assigned.

148. Nothing in this Act shall take away or prejudicially affect any of the rights remedies or priorities of the holders of gas annuities and water annuities who shall respectively have the same rights and remedies as if this Act had not been passed.

A.D. 1903.
Saving for
gas and water
annuitants.

PART XV.

MISCELLANEOUS PROVISIONS.

149.—(1) The Birmingham Tame and Rea District Drainage Board may sell to the Corporation and the Corporation may purchase the lands described in the Fifth Schedule to this Act for such sum as may be agreed upon between those bodies or failing agreement settled by arbitration under the Arbitration Act 1889.

Arrangement
with drain-
age board
and erection
of destructor
and generat-
ing station.

(2) The said board shall apply all purchase money received by them under this section in or towards the extinguishment of any loan raised by them or to such other purpose as the Local Government Board may approve.

(3) The Corporation may on the said lands when acquired by them erect and maintain a refuse destructor for burning dry refuse and also a station for generating electrical energy with all necessary dynamos batteries accumulators engines plant machinery works and conveniences and may subject to the provisions of section 18 of the Birmingham Electric Light and Power Order 1894 on such lands work and use such refuse destructor and generate electrical energy accordingly but such refuse destructor and lands shall not be used for the manufacture of artificial manure the reception and cleansing of faecal pans or for otherwise dealing with faecal matter.

(4) The Corporation may supply steam power or electrical energy to the said board for the pumping or raising of sewage or for other the purposes of the board upon such terms and conditions as may be agreed upon between those bodies.

150. The Corporation may place or authorise any person or persons to place seats and chairs and erect shelters in any street and in any place of public resort or recreation belonging to or under the control or management of the Corporation for the use of the public and may if they think fit charge or allow such person to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto.

Chairs and
seats for
public use

A.D. 1903.
Power to
close baths
and charge
for exclusive
use thereof.

151. The Corporation may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests or practices or exhibitions of aquatic sports or exercises and may demand and take such sums for the exclusive use of such baths or the admission of persons thereto as they may think fit. Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day or on more than two days in any one week.

Turkish and
other baths.

152.—(1) The Corporation may purchase provide regulate and manage swimming Turkish and other baths and they may demand and take such reasonable charges for the use thereof as they may think fit.

(2) Section 36 (Proportion of baths for labouring classes) of the Baths and Washhouses Act 1846 shall cease to apply to the Corporation and to their baths within the city.

Byelaws as
to cemetery.

153. The Corporation shall with respect to any cemetery belonging to them and established under the Burial Acts have the same power of making byelaws as if such cemetery had been established under the Public Health (Interments) Act 1879.

Provision as
to lands com-
prised in re-
cited lease of
16th May
1899.

154. It shall be lawful for the Corporation on the lands demised to them by the herein-before recited indenture of lease dated the sixteenth day of May one thousand eight hundred and ninety-nine or on any part thereof to erect equip and use buildings for any of the purposes of the Municipal Corporations Act 1882 the Public Health Acts the recited Acts or of any other public or local Act for the time being in force of which the Corporation are or shall be the executive authority and it shall also be lawful for the Corporation to acquire by agreement the reversionary interest expectant on the determination of the said lease in the said lands or any part thereof and the provisions of section 253 (Power to exchange or demise lands) and of section 254 (Application of purchase money of land) of the Act of 1883 shall apply to any lands in which the Corporation shall have acquired the said reversionary interest as aforesaid.

Amendment
of section XI.
of Birming-
ham and
Midland In-
stitute Act.

155. Section XI. (Management of institute) of the Birmingham and Midland Institute Act (passed in the year 1854) shall be read and have effect as if the words “a person from time to time chosen by the council of the University of Birmingham” were substituted

for the words “the chairman for the time being of the committee of the Birmingham Society of Arts and Government School of Ornamental Art.” A.D. 1903. —

156. Except as otherwise provided the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 except so much thereof as relates exclusively to byelaws of a rural sanitary authority shall apply to the byelaws which the Corporation are by this Act authorised to make. Byelaws.

157.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

158. Where under the provisions of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Work done on two or more properties.

159. Whenever the Corporation under any enactment or byelaw for the time being in force within the city execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be added to and be deemed to be part of the expenses payable by such owner or occupier. In executing works for owner Corporation not liable for damage.

A.D. 1903.

Power to
purchase
additional
lands by
agreement.

160. The Corporation may (in addition to the lands described in the Fifth Schedule to this Act) by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole ten acres but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands.

Restriction
on taking
houses of
labouring
class.

161. The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Audit of
accounts.

162. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Compensa-
tion now to
be deter-
mined.

163. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

164. The following sections of the Act of 1883 are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act namely :—

A.D. 1903.
—
Incorporation of certain sections of Act of 1883.

Section 263 Right of appeal.

Section 282 Power to execute works in default of person liable.

Section 284 Provision in case of occupier opposing execution of Act.

Section 289 Protection of members and officers of Corporation.

Section 294 Powers of Act cumulative.

165. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Prosecution and recovery of offences and penalties.

166. Notwithstanding anything contained in the Towns Improvement Clauses Act 1847 section 191 or any other Act it shall be lawful for any complaint or summons for non-payment of any improvement rate to be heard by and before any justice whether the application for such summons was made to such justice or not.

Summonses for non-payment of improvement rate to be heard before any justice.

167.—(1) In addition to the powers conferred on them by section 159 of the Municipal Corporations Act 1882 the justices of the city may from time to time direct the clerk to appoint and employ such assistant or assistants as to the justices shall seem expedient and to pay to such assistant or assistants such remuneration as the justices shall approve.

Assistants to justices clerk.

(2) This section shall not apply to the existing clerk to the justices save with his written consent.

168.—(1) It shall be lawful for the Corporation to vary or amend any scheme made by them under the provisions of the Birmingham Order 1897 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897 so that the said scheme shall apply to any stipendiary magistrate clerk to justices or any of his assistants.

Power to amend superannuation scheme.

A.D. 1903. — (2) No scheme made by the Corporation under this section shall be made compulsory on the existing stipendiary magistrate clerk to the justices or any of his assistants.

Crown rights. **169.** Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act. **170.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and rate or out of moneys to be borrowed under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

THE FIRST SCHEDULE.

RECITED ACTS.

Session and Chapter.	Title or Short Title.
39 & 40 Vict. c. cccxxv.	The Order relating to Birmingham confirmed by the Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.
43 & 44 Vict. c. clxxviii.	The Birmingham Corporation Stock Order 1880 confirmed by the Local Government Board's Provisional Orders Confirmation (Bethesda &c.) Act 1880.
44 & 45 Vict. c. lxxviii.	The Birmingham Corporation Stock Order 1881 confirmed by the Local Government Board's Provisional Order Confirmation (Birmingham) Act 1881.
45 & 46 Vict. c. lxi.	The Birmingham Corporation Stock Order 1882 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1882.
46 & 47 Vict. c. lxx.	Birmingham Corporation (Consolidation) Act 1883.
54 & 55 Vict. c. clxi.	The Order relating to Birmingham confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1891.
55 & 56 Vict. c. clxxiii.	Birmingham Corporation Water Act 1892.
57 & 58 Vict. c. cxv.	The Order relating to Birmingham confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1894.
57 & 58 Vict. c. cxxiii.	The Order relating to Birmingham confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1894.
58 & 59 Vict. c. xciii.	The Order relating to Birmingham confirmed by the Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1895.
59 & 60 Vict. c. xxxii.	Birmingham Corporation Water Act 1896.
60 & 61 Vict. c. cxliii.	The Order relating to Birmingham confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897.
62 & 63 Vict. c. clxix.	Birmingham Corporation Act 1899.
63 & 64 Vict. c. lxxiv.	Birmingham Corporation (Stock) Act 1900.
2 & 3 Edw. 7. c. xviii.	Birmingham Corporation Water Act 1902.

In addition to the above there are certain unrepealed provisions of the Birmingham (Corporation) Gas Act 1875 and Birmingham (Corporation) Water Act 1875.

A.D. 1903.

THE SECOND SCHEDULE.

ELECTRIC GENERATING STATION.

All that piece of land situate in the city of Birmingham in the county of Warwick bounded on the north-east by Lower Loveday Street on the north-west by Summer Lane on the south-east by the towing path of the Birmingham and Fazeley Canal and lands belonging or reputed to belong to the Company of the Proprietors of the Birmingham Canal Navigations and on the south-west by lands and buildings belonging or reputed to belong to the trustees of the Birmingham General Hospital and others which said piece of land with the canal basins thereon contains an area of 19,409 square yards or thereabouts and part of which was formerly the site of the old Birmingham General Hospital and the buildings appertaining thereto.

THE THIRD SCHEDULE.

TRAMWAY TOLLS.

RATES FOR ANIMALS AND GOODS.

<i>Animals.</i>				Per mile.	
				s.	d.
For every horse mule or other beast of draught or burden	...	...	...	0	4
For every ox cow bull or head of cattle	...	...	...	0	3
For every calf pig sheep or small animal	...	...	...	0	1½
<i>Goods.</i>					
For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	...	...	...	0	2
For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specially classed herein and for heavy iron castings including railway chairs	...	...	...	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	...	...	...	0	3
For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	...	...	...	0	4
For every carriage of whatever description under one ton in weight tenpence with the additional charge of twopence per quarter of a ton over one ton in weight.					

<i>Parcels.</i>	Any distance.		A.D. 1903.
	s.	d.	
For any parcel not exceeding 7 lbs. in weight... 	0	3	—
For any parcel exceeding 7 lbs. and not exceeding 14 lbs. in weight	0	5	
For any parcel exceeding 14 lbs. and not exceeding 28 lbs. in weight	0	7	
For any parcel exceeding 28 lbs. and not exceeding 56 lbs. in weight	0	9	
For any parcel exceeding 56 lbs. such sum as the Corporation may think fit:			

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

<i>For the carriage of single articles of great weight.</i>		Per mile.	
		s.	d.
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Corporation may think fit not exceeding per ton		1	0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Corporation may think fit.			

Regulations as to weight.

For articles or animals conveyed on the tramways for a less distance than two miles the Corporation may demand rates and charges as for two miles.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For the fraction of a ton the Corporation may demand rates according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

In addition to the foregoing rates the Corporation may demand such charges as are reasonable for loading and unloading the animals and goods and if any difference shall arise as to the reasonableness of any such charge the matter in difference shall be settled by the Board of Trade.

A.D. 1903.

THE FOURTH SCHEDULE.

ADDITIONAL TOLLS AND CHARGES IN MARKETS AND FAIRS.

In a Covered Market.

	s.	d.
For every bull steer cow or heifer	0	6
For every two-wheeled cart or vehicle of whatever description ...	1	0
For every four-wheeled wagon or vehicle of whatever description ...	2	0
For every set or part of a set of harness	1	0
For every wagon load of hay straw clover rye grass vetches or fodder	2	0
For every cart load of hay straw clover rye grass vetches or fodder...	1	0
For every bale truss bolting or other package of hay straw or fodder not exceeding one hundredweight	0	1
For every wagon containing loose vegetables when loaded in the body only	1	6
For every wagon containing loose vegetables when loaded on the wings or higher than the body of the same	2	3
For every railway wagon or other wagon with gearing above the body of the same containing loose vegetables	3	6
For every cart containing loose vegetables when loaded in the body only	0	9
For every cart containing loose vegetables when loaded on the wings or higher than the body of the same	1	3
For every cart containing loose vegetables when loaded with gearing above the body of the same	1	6
For every wagon containing privet quick mistletoe holly or other plants trees or shrubs... ..	3	6
For every cart containing privet quick mistletoe holly or other plants trees or shrubs... ..	2	6
For every twelve bunches of flowers herbs or planting roots otherwise than in packages	0	1
For every additional six bunches or part of six bunches	0	0½
For every basket or other package containing mistletoe holly flowers herbs watercress or planting roots bulbs or ornamental grasses and not containing more than one bushel	0	3
For every additional half bushel	0	1½
For potatoes carrots parsnips turnips and dry onions otherwise than in packages or bunches every hundredweight... ..	0	2
For every additional half-hundredweight	0	1
For every hundredweight of cheese	0	3
For every twelve plants shrubs or trees	0	3
For every twelve reeves of onions	0	2
For every bunch of bananas	0	1½
For every five bundles (each containing not more than twelve sticks of celery)	0	2

<i>Charges for Pens.</i>					A.D. 1903.	
					s.	d.
For bulls steers cows or heifers each pen	...	...	...	...	2	0
<i>For the use of Slaughter-houses.</i>						
For every pig except sucking pig	...	...	...	...	0	8
For every sucking pig not exceeding 20 lbs. weight	...	...	...	...	0	2

The tolls rents stallages and charges to be taken in the several markets and fairs and specified in the Second Schedule to the Birmingham Corporation (Consolidation) Act 1883 and in this schedule shall unless otherwise stated be for each market day or portion of a day for which the market for the sale of such animals articles or things is held.

The charges for pens specified in the Second Schedule of the Birmingham Corporation (Consolidation) Act 1883 and in this schedule shall be in addition to the tolls due in respect of animals brought to the market.

The tolls on carts and wagons of hay straw clover rye grass vetches or fodder and for the use of slaughter-houses specified in this schedule shall be paid in respect of such animals or articles instead of those specified in the Second Schedule of the Birmingham Corporation (Consolidation) Act 1883.

The charge of three halfpence for every package containing a bushel or part of a bushel of fruit vegetables or flowers specified in the Birmingham Corporation (Consolidation) Act 1883 shall not apply to packages of flowers.

THE FIFTH SCHEDULE.

LANDS FOR DESTRUCTOR AND GENERATING STATION.

All that piece of land situate in the parish of Aston in the city of Birmingham in the county of Warwick bounded on the south by the Aston and Stechford branch of the London and North Western Railway on or towards the west by lands belonging or reputed to belong to the Company of Proprietors of the Birmingham and Warwick Junction Canal Navigation and on or towards the north and east by other land of the Birmingham Tame and Rea District Drainage Board which said piece of land measures in the whole two acres or thereabouts and is now in the occupation of the said Birmingham Tame and Rea District Drainage Board.

A.D. 1903.

THE SIXTH SCHEDULE.

ACTS AND ORDERS RELATING TO TRAMWAYS WITHIN THE CITY.

Session and Chapter.	Short Title of Act or Order and of Confirming Act.	Sections and Parts of Sections saved from Repeal.
35 & 36 Vict. c. clvii.	The Birmingham (Corporation) Tramways Order 1872 confirmed by the Tramways Orders Confirmation Act 1872 (No. 3).	Sections 11 to 14.
37 & 38 Vict. c. clxxxiii.	The Birmingham (Corporation) Tramways Order 1872 Amendment Order 1874 confirmed by the Tramways Orders Confirmation Act 1874.	
43 & 44 Vict. c. clxxiii.	The Birmingham and Aston Tramways Order 1880 confirmed by the Tramways Orders Confirmation (No. 2) Act 1880.	
44 & 45 Vict. c. clxiii.	The Birmingham and Western Districts Tramways Order 1881 confirmed by the Tramways Orders Confirmation (No. 2) Act 1881.	Section 46 and sections 48 to 52.
45 & 46 Vict. c. ci.	The Birmingham and Aston Tramways Order 1882 confirmed by the Tramways Orders Confirmation (No. 3) Act 1882.	Sections 9 to 13.
45 & 46 Vict. c. ci.	The Birmingham and Suburban Tramways Order 1882 confirmed by the Tramways Orders Confirmation (No. 3) Act 1882.	Sections 47 to 53.
45 & 46 Vict. c. ci.	The Birmingham and Western Districts Tramways Order 1882 confirmed by the Tramways Orders Confirmation (No. 3) Act 1882.	So much of section 7 as extends and applies section 46 and sections 48 to 52 of the said Order of 1881 to the tramways authorised by this Order.
46 & 47 Vict. c. xlvii.	The Birmingham and Western Districts Tramways Order 1883 confirmed by the Tramways Orders Confirmation (No. 2) Act 1883.	Sections 23 and 24 and so much of section 15 as extends and applies section 46 and sections 48 to 52 of the said Order of 1881 to the tramways authorised by this Order.
46 & 47 Vict. c. xlvii.	The North Birmingham Tramways Order 1883 confirmed by the Tramways Orders Confirmation (No. 2) Act 1883.	
48 & 49 Vict. c. ciii.	The Birmingham Central Tramways (Extension) Order 1885 confirmed by the Tramways Orders Confirmation (No. 3) Act 1885.	Sections 8 and 9.

			A.D. 1903.
Session and Chapter.	Short Title of Act or Order and of Confirming Act.	Sections and Parts of Sections saved from Repeal.	
48 & 49 Vict. c. ciii.	The Birmingham Corporation Tramways Order 1885 confirmed by the Tramways Orders Confirmation (No. 3) Act 1885.	Sections 10 and 19.	
50 Vict. c. xxii.	The Birmingham Central Tramways (Extension) Order 1886 confirmed by the Tramways Orders Confirmation (No. 3) Act 1886.	Sections 27 to 30.	
50 Vict. c. xxii.	The South Birmingham Tramways (Extension) Order 1886 confirmed by the Tramways Orders Confirmation (No. 3) Act 1886.	Sections 9 and 10.	
50 & 51 Vict. c. cxevi.	The Birmingham Central Tramways (Extension) Order 1887 confirmed by the Tramways Orders Confirmation (No. 1) Act 1887.	Section 15.	
1 Edw. 7. c. xev.	The King's Norton and Northfield Urban District Tramways Act 1901.	Section 31.	
1 Edw. 7. c. ccxxi.	The City of Birmingham Tramways Act 1901.	Sections 6 to 8 25 30 31 and 54 to 59.	

THE SEVENTH SCHEDULE.

FORM OF MORTGAGE.

CITY OF BIRMINGHAM—BIRMINGHAM CORPORATION ACT 1903.

By virtue of the Birmingham Corporation Act 1903 and of other their powers in that behalf them enabling the lord mayor aldermen and citizens of the city of Birmingham (herein-after referred to as "the Corporation") in consideration of the sum of _____ pounds paid to the treasurer of the city by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum of _____ pounds doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid to (him) (or them) with interest for the same (subject as herein-after provided) after the rate of _____ per centum per annum from the _____ day

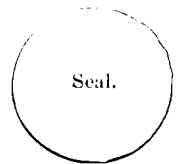
[Ch. cxcii.] *Birmingham Corporation Act, 1903.* [3 EDW. 7.]

A.D. 1903. of one thousand nine hundred and until
 — payment of the said principal sum such interest to be paid half-yearly on
 the day of and the day
 of in each year :

And it is hereby agreed that the said principal sum of
 pounds shall be paid at the Council House in the
 said city (subject as herein-after provided) on the day
 of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hand of the town clerk of the said city for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this day of one thousand nine hundred



THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting
 the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to
 the day of one thousand nine hundred
 and [] (and the interest to be paid thereon on and from the
 day of one thousand nine hundred and
 [] is hereby declared to be after the rate of per centum
 per annum).

Dated this day of one thousand
 nine hundred

Witness

Town Clerk.

FORM OF TRANSFER OF MORTGAGE.

A.D. 1903.

CITY OF BIRMINGHAM—BIRMINGHAM CORPORATION ACT 1903.

I (the within-named) A.B. (of _____) in consideration of the sum of _____ pounds paid to me by _____ of _____ (herein-after called "the transferee") do hereby transfer to the transferee (his) executors administrators and assigns (the within written security) the mortgage number _____ of the revenues of the Corporation of the city of Birmingham at the yearly rate of _____ in the hundred bearing date the _____ day of _____ and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this _____ day of _____ one thousand
nine hundred _____

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